

836, 846, italics omitted), and “the court is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity.” (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219). If the moving party meets its initial burden of production, the burden shifts to the party opposing arbitration to produce evidence challenging the authenticity of the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If that burden is met, “the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (Ibid.)

Here, HMA meets its initial prima facie burden of establishing the existence of a written arbitration provision, in the Warranty.

In Opposition, Plaintiff does not dispute the existence of the arbitration provision in the vehicle’s written warranty or that he accepted the benefits of that agreement by presenting the vehicle for repair. Plaintiff also submits no evidence that he opted out of the agreement. *However*, Plaintiff declares that to the best of his memory, he was not provided with a copy of any Owner’s Handbook and Warranty Information booklet when he leased the Subject Vehicle and was never given any notice that it contained an arbitration provision or an opt-out provision. This motion is the first Plaintiff has heard about it. Plaintiff never signed an agreement to arbitrate nor did he ever consent to arbitration. It is undisputed that Plaintiff never signed an agreement to arbitrate claims between HMA and himself.

In Reply, HMA argues and presents evidence that in California, all vehicles sold at authorized Hyundai dealerships include a Owner’s Handbook. However, there is no evidence that Plaintiff received one in this instance. Thus, Defendant HMA has failed to establish a valid arbitration agreement between the parties.

Accordingly, the motion to compel arbitration based upon the warranty booklet is DENIED.

Bluelink Customer Services Agreement

HMA has failed to meet its burden to demonstrate the Arbitration Agreement in the Bluelink CSA covers all of Plaintiff’s claims in this action. While the Bluelink CSA Arbitration Agreement purports to cover any and all disputes between the parties regarding “[plaintiff’s] Vehicle”—the scope of an arbitration clause turns on whether the claims are “rooted” in the contractual relationship between the parties. (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 692.) To be arbitrable, the subject claims must have their roots in the relationship between the parties that was created by the contract containing the arbitration provision. (*Id.* at pp. 692-693; *Rice v. Downs* (2016) 248 Cal.App.4th 175, 188.)

“[E]ven under a very broad arbitration provision, such as ‘any controversy or claim arising out of or relating to this agreement,’ ” the subject claims must “ ‘have their roots in the relationship between the parties which was created by the contract’ ” before they can be deemed to fall within the scope of the arbitration provision.” (*Rice, supra*, 248 Cal.App.4th at p. 188.)

		Here, the Bluelink CSA governs the provision of Connected Services, i.e., the wireless/technology services received as part of the enrollment in a Bluelink Connected Services subscription. (Rao Decl. ¶ 6, Feeley Exh. 3.) Plaintiff's claims, however, go far beyond this scope. Plaintiff alleges the Subject Vehicle was defective, was not able to be repaired in a timely manner, and HMA failed to replace the Subject Vehicle or make restitution. (See Complaint, generally.) The Connected Services contemplated in the CSA do not implicate Plaintiff's allegations. Accordingly, Plaintiff's claims do not "have their roots in the relationship" created by the CSA. Based upon the foregoing, the motion to compel arbitration based upon the CSA is DENIED. Plaintiff to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to August 13, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
2	Schein v. B&B Collision & Coachwerks, Inc.	Off calendar.
3	Lopez v. Cross Roads Apartments	Defendant FDK Enterprises LP A Calif Ltd Partnership Magellan Management LLC dba Cross Roads Apartments moves to compel Plaintiff Tina Lopez to respond to the first set of form interrogatories, special interrogatories, and demand for inspection and production of documents. For the following reasons, the motions are GRANTED. Responses to interrogatories and inspection demands are due 30 days after service (plus appropriate time for method of service). (Code Civ. Proc. §§ 2030.260; 2031.260.) If the party to whom a discovery request is directed fails to respond timely, that party waives all objections, including claims of privilege and work product protection. (Code Civ. Proc. §§ 2030.290(a) (interrogatories); 2031.300(a) (inspection demands).) On September 15, 2025, Defendant served Plaintiff with the first set of form interrogatories, special interrogatories, and demand for inspection and production of documents. (Chang Declarations, ¶¶ 2-5, Ex. A and B.) Plaintiff has not served responses to the discovery requests. (Ibid.) Plaintiff has not filed an Opposition, and there is no evidence that Plaintiff responded to the discovery requests. As a result of Plaintiff's failure to respond to the discovery requests, Defendant is entitled to an order compelling responses without objections. (Code Civ. Proc. §§ 2030.290, 2031.300.)